Louisa County Water Authority
Board of Directors
November 8, 2023

MEMBERS PRESENT:

MEMBERS ABSENT:

OTHERS PRESENT:

A. Call to Order

Mr. Foster called the meeting to order at __:__ pm.

1. ADOPTION OF THE AGENDA

Mr. Foster asked if there were any changes or additions to the agenda. Hearing none, Mr. _____ made a motion to adopt the agenda as presented. The motion was seconded by Mr. _____ and carried __-__.

B. Public Hearing

A. BULK WATER – HYDRANT WATER
B. EMERGENCY RATES

To whom it may concern:

My husband James and I have resided at our current address in Zion Crossroads for 14 years. During that time, we have seen astronomical increases in the rates for water and sewage in our neighborhood. While our water usage has not, on average, increased each month, our bill has gone up significantly. It seems like every month, we get a notice about an increased rate, a one-time fee, or an "operations fee."

The proposal to more than triple the rate of bulk water and hydrant water is absurd. There must be some other source of revenue or funding to maintain or repair the damaged hydrants in question. (And seriously - how much money does it cost to repair a hydrant? Tripling our water rate can't possibly be necessary.)

Please consider the devastating impacts of inflation on most families' cost of living and refrain from tripling our water rate. Water is a basic human right, and having access to clean water shouldn't put undue financial strain on families who are already struggling.

Sincerely,
Jessica Shifflett
124 Appalachian Lane, Zion Crossroads, VA
(434) 422-0881

C. Presentations

D. Citizen Information

E. Consent Agenda

5. APPROVAL OF THE MINUTES:

A. OCTOBER 11, 2023 – REGULAR BUSINESS MEETING

6. TREASURER'S REPORT:

A. O & M REPORT / CAPITAL REVENUE & EXPENDITURE REPORT – OCTOBER 2023
B. APPROVAL OF DISBURSEMENTS – OCTOBER 2023
C. CONSTRUCTION FUND – OCTOBER 2023
D. SUMMARY STATEMENT OF REVENUE – FIRST QUARTER FY2024
E. DETAILED STATEMENT OF REVENUE – FIRST QUARTER FY2024
F. SUMMARY STATEMENT OF EXPENSES – FIRST QUARTER FY2024
G. DETAILED STATEMENT OF EXPENSES – FIRST QUARTER FY2024
H. INVESTMENTS
I. REGIONAL SEWAGE EXPENSE & REVENUE
J. NORTHEAST CREEK: PAID CONSTRUCTION FEES AND ALLOCATIONS
K. ZION CROSSROADS: PAID CONSTRUCTION FEES AND ALLOCATIONS

The General Manager pointed out CH#13155 to GPM Investments in the amount of $7,884. The Citgo station at Zion Crossroads paid for a 3" meter in 2010. They only have a 2" meter. The amount paid in 2010 for a two-inch meter was $84,000. They should have paid $36,750. We deducted the current connection fee for sewer from the $47,250 credit of $39,366, leaving a balance of $7,884. The bigger problem was they were being charged the monthly fee for a three-inch meter. We were able to go back to determine what they paid and what they should have paid to 2012. They will have a credit on their account for quite a while. GPM Investments seemed pleased with our efforts to correct the error make long ago.

The Board reviewed the Consent Agenda, including the Treasurer's Report. Upon completion of the review, Mr. _____ made a motion to approve the Consent Agenda and the Treasurer's Report. The motion was seconded by Mr._____ and carried __-__.

F. Old Business

7. UPDATE – JAMES RIVER WATER PROJECT

November Update – A meeting will take place on the Hammond Property to realign the water line to avoid conservation easements this week. Late last week, the Army Corps of Engineers has provided comments on the permit application submitted. The engineers and contractors are working through the comments currently.

8. NORTHEAST CREEK WATER TREATMENT PLANT

A. NECWTP SEDIMENTATION BASINS IMPROVEMENT (SLUDGE VAC-SYSTEM UPDATE)

This project is on hold until March 2024, when it will be re-advertised for bid.

B. CLEARWELL ROOF / BASEMENT FLOOR DRAINAGE

Complete.

C. NANOFILTRATION GRATING EVALUATION / UPGRADE TO ACCESS / PALLET JACK

Grating and access complete. Pallet-jack delivery expected in January 2024.

D. 4th OPERATOR

Two operators have been interviewed. There are no additional qualified applicants with applications pending.

E. HIGH SERVICE PUMP #2 – ROSS VALVE RE-BUILD

This project is considered a high priority with completion anticipated this month.

F. RAW WATER VALVE ACTUATOR

Still on the list of items to be completed.

G. SHOWER REPLACEMENT

Contractor stopped by to look at the project on Tuesday, November 7, 2023.

H. DECKING ON GENERATOR

Contractor stopped by to look at the project on Tuesday, November 7, 2023

9. ZION CROSSROADS WELL SYSTEM UPDATES

A. REPLACEMENT 50 HP PUMP/MOTOR (SPRING CREEK #3)

The pump is in, when we stopped by to check they indicated that our paperwork was not complete to set up our account. The paperwork is completed, and the pump will be picked up soon.

B. Spring Creek #1 & #2

The week of November 6, 2023, the power will be off for the Spring Creek Well House. This will provide the electrician time to tie everything in together. No responses were received to the Request for Proposal we advertised. The plan to move forward with the interior piping is that Southwood Builders will be providing a quote and we plan to have Central Virginia Contractors (our contract services provider for excavation work) contract with Core & Main to provide a quote through them.

10. Louisa Regional WWTP

A. REGIONAL OPTIMIZATION AND PROCESS OPERATIONS STUDY

The engineer was contacted on Thursday, November 2, 2023, to determine the status. The engineer stated that they would get it finalized and sent out for us.

B. FRENCH DRAIN – TRENCH – PAISLEY-KERR

Materials were delivered on Friday, November 3, 2023. Worked commenced on Monday, November 6, 2023, and was completed on Tuesday, November 7, 2023. Septage receiving will be down approximately one month while the concrete cures.

C. BLOWER

Still on the list of items to be completed.

D. WATER LEAK

Still on the list of items to be completed.

E. BEARING OUT IN DITCH #3

Project completed.

F. Generator control board / transfer switch

Project completed.

11. ZION CROSSROADS WWTP

A. BIO-CAT SAMPLING

The Bio-CAT sampling results were provided in the Agenda Packet. LCWA Staff along with the engineers met with BioCAT to review the results of the sampling on October 30, 2023. Based on the results, BioCAT was offered two discharges per week, with each discharge taking up to three days to slowly be entered into the collection system. BioCAT was not pleased with this offer. They wanted four discharges per week to be entered into the system within a 24–48-hour time frame. At the conclusion of the meeting, BioCAT and the engineers were going to exchange protocol / methodology / calculations to evaluate further. When that data has been shared, we will get back together to discuss further.

The County is not interested in providing all our allocation to BioCAT and if you look at Table 6 the total Phosphorus and BOD would take up 74% and 63% respectively.

B. TOXICITY TESTING

Trying to confirm if the Zion Crossroads WWTP Toxicity Testing Report is ready to be submitted to DEQ.

C. LIGHTNING STRIKE

The Lightning strike repairs are approximately 97% complete.

12. UPDATE – NEW BRIDGE WWTP

A. LINER REPAIRS

Still on the list of items to be completed.

B. GRINDER PUMPS

The pumps are in and ready to be installed. Should be completed this week. These pumps were under warranty.

C. ELECTRICAL WORK (EXTENSION CORDS)

Waiting on a quote.

D. BOOSTER PUMP

When installation was attempted, they could not get the pipes apart. Reevaluating on how to proceed.

E. COSTS TO DATE BREAKDOWN

The Board reviewed the costs to date breakdown for the NEW Bridge System.

F. SIGN

An email has been sent to the Dominion Power contact asking if they have size / language limitations for signs installed near the lake. No response has been received yet.

13. LEAD SERVICE LINE INVENTORY

Progress continues to be made on the administrative data gathering phase. The Virginia Department of Health – Office of Drinking Water is offering free assistance with the administrative data collection process. Nellie Clatterbuck is attending the meeting today to see how then can help us move this forward.

14. NORTHEAST CREEK DAM (SOUTH ANNA DAM #22) AND BOWLERS MILL DAM (SOUTH ANNA #2)

A. APPLICATION FOR FUNDING (NORTHEAST CREEK DAM)

Still on the list of items to be completed.

B. INSPECTIONS

The inspections have been completed. Waiting on the report.

D. LOW-LEVEL VALVES – EXERCISE

A railing on Bowlers Mill Dam will need to be repaired and the low-level valves will need to be exercised. That will be scheduled in the spring of 2024.

15. ADDITION OF WATER TO ST. FRANCIS PUMP STATION

A. TOWN OF MINERAL APPROVAL

Waiting for approval from the Town of Mineral.

16. UTILITY STANDARDS

Waiting for Town of Louisa's acceptance / denial for updating their portions of the Utility Standards.

G. New Business

17. FISCAL YEAR 2023 RECAP

A. LCWA: COST / REVENUE PER 1,000 GALLONS FY2023
B. MEMO – WATER AND SEWER RATES
C. THE 35th ANNUAL VIRGINIA WATER & WASTEWATER RATE REPORT 2023

The Board reviewed the fiscal year 2023 recap information.

18. PFAS REPORT FOR NORTHEAST CREEK RAW WATER

The Board reviewed the Northeast Creek Raw Water sample results for PFAS. According to the Virginia Department of Health – Office of Drinking Water, there is nothing to do currently. The information will be put on their website, we do not need to notify our customers.

The General Manager asked the Bboard if they would like to establish base line sampling for the wells. VDH-ODW does not currently require wells to be sampled for PFAS.

Pace Analytical Services - $	VDH-ODW
Eurofins Environmental Testing - $540.00	Legal counsel recommends.

- According to the EPA, public water systems without detectable levels of PFOA and PFOS should continue to monitor for PFAS if they are concerned about potential contamination, but EPA is not recommending additional actions.
- VDH advises Public Water Systems that detect PFAS in their drinking water to take steps to inform customers, undertake additional sampling to assess the level, scope, and source of contamination, and examine steps to limit exposure.
- Waterworks with sample results that exceed the proposed EPA regulations for PFAS are advised to urgently undertake additional sampling to assess the level, scope, and source of contamination, and plan for steps to limit exposure.
- Waterworks that collect PFAS samples under the Unregulated Contaminant Monitoring Rule 5 (UCMR5) have the following additional requirements:
    - Annual Consumer Confidence Reports (CCRs) required for community water waterworks must address the required unregulated contaminant monitoring. The CCR table(s) must contain the average and range at which the contaminant was found (i.e., measured > the UCMR MRL). The report may include a brief explanation of the reasons for monitoring for unregulated contaminants.
    - Public Notification (PN) is required by 40 CFR 141.207 for all waterworks subject to UCMR5. The waterworks must notify people served of the availability of all UCMR results no later than 12 months after they are known, using a Tier 3 public notice. The notice must identify a person and the telephone number to contact for information on the unregulated contaminant monitoring results. Community waterwork may include their public notice within their CCRs if timing and delivery requirements are met.

19. BIOCAT BENCH TESTING RESULTS

Covered in Section 11.A.

H. Reports

I. General Manager's Report

● **October levels**: At the end of October the static well levels are up just under one foot from the end of September 2023 levels. From October 2022 to October 2023, the well levels are up approximately 5 feet.

The smaller table shows static well levels located nearer to the production wells. These levels are up approximately 2 feet from the end of September 2023 levels. From October 2022 to October 2023, the well levels are up approximately 23.9 feet.

As of November 1, 2023, the Department of Environmental Quality Drought website is indicating normal conditions exist for groundwater and reservoir levels. Emergency conditions for stream flow and watch conditions of precipitation.

Brent Waters stated in an email on November 3, 2023, updating the graphs that he has "no concerns on the sustainability of the groundwater wells, especially as you get the other two spring creek wells online".

● The current past-due listing is down to $5,114.14 from the past-due listing provided in the General Manager's Report, which reported the past-due balance of $10,974.59.

● After discussion with Wanda Colvin, Deputy County Administrator with the County of Louisa, it appears that our Purchase Policy is the same as the County's and meets all procurement laws. The County Administrator has a $100,000 spending limit but must follow the policies and procurement laws.

● New Bridge Boil Water Notice – The New Bridge Water System lost pressure at approximately 6:12 pm on Tuesday, October 17, 2023. Cody Langridge responded and when he entered the control panel, it ARC flashed / sparked. He immediately called the electrician who responded, fixed the issue and water was flowing by 9:09 pm. Due to the loss of pressure a boil water notice had to be issued. Office staff emailed all customers we had email addresses for, put the notice on our website and hand delivered notices. All sample results were fine and by Thursday, October 29, 2023, the boil water notice was lifted.

● On November 3, 2023, the Zion Crossroads WWTP staff noticed a significant increase in flow. Normal flow is approximately 180,000 gpd, it shot up to 400,000 gpd. The Chief Operator drove to the Crossing Pointe construction site and observed a pump pumping from the lagoon system into the Zion Crossroads collection system. As far as we are concerned this is an illegal discharge into our collection system. We immediately directed them to stop pumping into our system. It took them an hour to get someone on site to shut the pump off. We are scheduled for a meeting tomorrow at 10:00 am to discuss this issue and how to safely pump the lagoons down into our collection system, without incurring violations.

J. Committees

The Personnel Committee met October 25, 2023, to review the first three sections of the Employee Handbook. A second meeting to cover sections 4 and 5 is being scheduled for the week of November 13, 2023.

K. Short Notice Items

Closed Session:

A. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(7) CONSULTATION WITH LEGAL COUNSEL AND BRIEFINGS BY STAFF MEMBERS OR CONSULTANTS PERTAINING TO ACTUAL OR PROBALBE LITIGATING, WHERE SUCH CONSULTATION OR BRIEFING IN OPEN MEETING WOULD ADVERSLEY AFFECT THE NEGOTIATING OR LITIGATION POSTURE OF THE PUBLIC BODY.

Mr. _____ made a motion to close the regular open meeting and immediately reconvene in executive closed session for consultation with legal counsel and briefings by staff members or consultants pertaining to actual or probable litigation, where such consultation or briefing in open meeting would adversely affect the negotiating or litigation posture of the public body.

The motion was seconded by Mr. _____ and carried __-__.

RETURN TO OPEN MEETING:

Chairman Foster closed the closed session and immediately reconvened in regular open meeting at __:__ pm.

CERTIFY:

Mr. Foster read the following statement prior to the vote to certify the closed session.

"Pam will now poll members to certify that, to the best of your knowledge, only public business matters lawfully exempted from the open meeting requirements under the Virginia Freedom of Information Act, and as identified in the motion for which the closed meeting was convened, were discussed, and considered by the Board. If any member believes that the Board varied from the purpose stated for the closed meeting, please state so and the reason prior to casting the vote." A roll call vote was requested with the following results:

Mr. Foster
Mr. Smith
Mr. Filer
Mr. Hardy
Mr. Kies
Mr. Morgan
Mr. Wilson

The motion was carried __-__ .

20. ELECTION OF OFFICERS

Mr. Foster informed the Board that in September elections are held to fill the Chairman, Vice-Chairman, and Secretary/Treasurer roles. Mr. Foster stated that he would be willing to serve another term as Chairman if the Board so desired. Mr. Smith stated that he too would be willing to server another term as Vice-Chairman.

After a brief discussion, Mr. _____ made a motion to retain the current slate of officers. The motion was seconded by Mr. _____ and carried __-__.

Next meeting date - The next business meeting is scheduled for December 13, 2023

L. Adjournment

THERE BEING NO FURTHER BUSINESS, Mr. _____ made a motion to adjourn at __:__pm. The motion was seconded by Mr. _____ and carried __-__.

BY ORDER OF:

Judson Foster
Chairman
LOUISA COUNTY WATER AUTHORITY